Associate Scenarios: Nursing mothers, gender identity, and reasonable accommodation

- Extended Breaks or Lunch for Nursing Mothers
  - Although we can't ask if they require time to pump, if you know that someone is returning from maternity leave or just had a baby, you can ask,
    - "<Client's name> provides you with one 30 minute lunch and two 15 minute breaks. Is this acceptable or do you require any additional time away from the job?"
  - You will need to give the client a heads up if the associate discloses that they will need this extra time away from the job to pump. There's a chance you may also need to educate the client on the "Break Times for Nursing Mothers" law, which:
    - Applies to all hourly employees
    - Employers are required to provide a place that is not a bathroom. It must be completely private so that no one can see inside. This doesn't have to be a permanent space, it just needs to be made available as needed.
    - Requires a "reasonable" break time, recognizing how often and how much time is different for every mother. This takes into account set up, pump time, and clean up.
    - The law does NOT require these breaks be paid, however, if the employer already offers paid breaks and only pumps during this time, their time should be paid as usual.
  - **Go the extra mile:** Check in on the associate to make sure that they have received proper accommodations at their worksite.
- If you encounter a situation relating to gender identity:
  - Always use the associate's preferred name and pronouns in conversation with or pertaining to the associate.
  - Full legal names must be listed on the Avionte profile since this is their employee record, but can be updated once the associate provides proof of a name change.
  - Consult with WSI's HR rep, your client's HR rep, and work together to do your research. Laws are constantly changing and it's crucial that you are up-to-date on any recent changes pertaining to the rights of all individuals.
  - **Go the extra mile:** Communicate the associate's preferred name or pronouns to the team by entering this information in their talent profile headline.

- How to communicate an associate's request for reasonable accommodation to your client:
    - Remember that employees are not required to disclose their disability to an employer except to request a job accommodation. An employee can tell their employer about the disability at any time, it doesn't have to be in the interview process. However, they are not covered by the protections of the ADA until they disclose their disability.
        - It is WSI's responsibility to ask if the candidate is able to perform the essential functions of the job with or without reasonable accommodation. However, it is the candidates responsibility to let us know if accommodation is required.
        - Reasonable accommodations may include availability of a sign language interpreter for orientation, the addition of flashing lights to an alarm, etc. Additional examples can be found on the Job Accommodation Network (JAN).
        - Medical documentation supporting the accommodation request can only be requested following the job offer.
    - We are only able to speak with the associate about any disability related inquiry, aside from whether they can perform the essential functions of the job with or without reasonable accommodation, after they have been offered employment.
    - You may need to educate your client about their duty and responsibility to supply reasonable accommodation to an employee with a disability. Please reach out to your manager for assistance with this conversation as needed and consult resources available through the Job Accommodation Network (JAN) and Searchable Online Accommodation Resource (SOAR).